

Daryao & Ors. v. State of U.P.

Citation: (1962) 1 SCR 574 / AIR 1961 SC 1457 | Court: Supreme Court | Year: 1961

Coram: 5-Judge Constitution Bench (P.B. Gajendragadkar J.) | Subject: Civil Procedure & Res Judicata | Provisions: CPC Sec 11, Articles 32 &

I. EXECUTIVE SUMMARY & CASE GLIMPSE

The rule of Res Judicata under Section 11 CPC is founded on high public policy and applies to Writ Petitions. If a writ petition under Article 226 is dismissed on merits by the High Court, a subsequent petition under Article 32 on the same facts is barred by res judicata.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding CPC Sec 11, Articles 32 & 226. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€ Whether the impugned state actions or commercial conduct conformed to CPC Sec 11, Articles 32 & 226.
- â€ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Res judicata is not a technical procedural rule but a foundational principle of finality in litigation ('interest reipublicae ut sit finis litium'). Litigants cannot have a second bite at the cherry by moving the Supreme Court under Article 32 after High Court dismissal on merits.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€ Applied the doctrine of Res Judicata under Section 11 CPC to constitutional writ petitions.
- â€ Barred Article 32 petitions where Article 226 writ was dismissed on merits.
- â€ Clarified exceptions: dismissal in limine without reasons or habeas corpus petitions.